

## 25VECV03499 25VECV03499

County: los-angeles

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Case Number: 25VECV03499 Hearing Date: August 4, 2026 Dept: NWI

25VECV03499 JAGGER MARRAPODI,  
et al. vs OAKS CHRISTIAN SCHOOL, et al.

August 4, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Hearing on  
Demurrer - with Motion to Strike

(CCP 430.10)

I.

### BACKGROUND

Plaintiff Jagger

Marrapodi, a minor, by and through his guardian ad litem Joseh Marrapodi, Jr.

(“Plaintiff”), is a middle school student. He alleges that after his teacher,

Defendant Amanda Yvette Munoz (“Munoz”), confiscated a laser pointer from him, she pointed the laser at him and caused an eye injury.

On June 25, 2025, Plaintiff

filed his original complaint against Defendants Oaks Christian School (“Oaks Christian”), Munoz (collectively, “Defendants”), and Does 1 to 50, alleging:

(1) general negligence; (2) child abuse and neglect under Penal Code section 273a; (3) battery; (4) assault; and (5) violation of the Tom Bane Civil Rights Act under Civil Code section 52.1.

On November 24, 2025,  
the Court sustained, without leave to amend, Defendants' demurrer to Plaintiff's  
second cause of action for child abuse and neglect under Penal Code section 273a  
in the original complaint. The Court sustained, with leave to amend,  
Defendants' demurrer to Plaintiff's fifth cause of action for violation of the  
Tom Bane Civil Rights Act under Civil Code section 52.1 in the original  
complaint. And the Court granted, with leave to amend, Defendants' motion to  
strike portions of the complaint related to seeking punitive damages.

On December 23, 2025,  
Plaintiff filed his first amended complaint (the "FAC") against Defendants,  
alleging: (1) general negligence; (2) battery; (3) assault; and (4) violation  
of the Tom Bane Civil Rights Act under Civil Code section 52.1.

On April 20, 2026, the  
Court sustained, without leave to amend, Defendants' demurrer to Plaintiff's  
fourth cause of action for violation of the Tom Bane Civil Rights Act under  
Civil Code section 52.1 in the FAC. The Court also granted Defendants' motion to  
strike portions of the FAC related to seeking punitive damages.

On May 4, 2026,  
Plaintiff filed a second amended complaint ("SAC") against Defendants,  
alleging: (1) general negligence; (2) battery; and (3) assault.

On June 3, 2026, Oaks  
Christian demurred to Plaintiff's second and third causes of action in the SAC  
for battery and assault on the grounds that the SAC is defective on both direct  
& vicarious liability theories. Oaks Christian also filed a motion to  
strike portions of the SAC related to seeking punitive damages.

Plaintiff filed his  
opposition on July 20, 2026.

Oaks Christian replied  
on July 28, 2026.

II.

LEGAL

STANDARDS

A.

#### Demurrer

The grounds for a demurrer must

appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311,

318.) Concerning the legal

sufficiency of a pleading, the sole issue on demurrer is whether the facts

pleaded, if true, state a valid cause of action – i.e., if the complaint

pleaded facts that would entitle the plaintiff to relief. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 339.)

A general demurrer admits the truth

of all factual, material allegations properly pled in the challenged pleading,

regardless of possible difficulties of proof.

(*Blank*, supra, 39 Cal.3d at p. 318.) Thus, no matter how unlikely or improbable,

plaintiff's allegations must be accepted as true for the purpose of ruling on

the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d

593, 604.) Nevertheless, this rule

does not apply to allegations expressing mere conclusions of law, or allegations

contradicted by the exhibits to the complaint or by matters of which judicial

notice may be taken. (*Vance v. Villa Park Mobilehome Estates* (1995) 36 Cal.App.4th 698,

709.) A general demurrer does not

admit contentions, deductions, or conclusions of fact or law alleged in the

complaint; facts impossible in law; or allegations contrary to facts of which a

court may take judicial notice. (*Blank*, supra, 39 Cal.3d at p. 318.)

Pursuant to Code of Civil Procedure section

430.10, subdivision (e), the party against whom a complaint has been filed

may object by demurrer to the pleading on the grounds that the pleading does

not state facts sufficient to constitute a cause of action. It is an abuse of discretion to sustain a

demurrer if there is a reasonable probability that the defect can be cured by

amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1082, as modified (Dec. 23, 2003).)

B.

#### Motion

to Strike

The Court may, upon a motion, or at any time in its discretion, and upon

terms it deems proper, strike any irrelevant, false, or improper matter

inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may

also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court. (Id., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

C.

Leave

to Amend

When a demurrer is sustained or a motion to strike is granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a plaintiff “has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

III.

#### DISCUSSION

Oaks Christian demurs to the second and third causes of action for battery and assault. Oaks Christian also moves to strike portions of the SAC related to seeking punitive damages and to the negligence per se theory claim.

The demurrer is overruled. The motion to strike is granted, without leave to amend, as to punitive damages. The motion to strike is denied as to the negligence per se claim (paragraphs 42-48).

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#### A. Summary of Allegations in the SAC

Plaintiff alleges that on April 29, 2024, he was a 7th grade student in Munoz’s classroom at Oaks Christian. Plaintiff alleges he took a “532nm 5mw High Power Green Laser Pointer Torch” with him to Oaks Christian.

Munoz confiscated the laser pointer from Plaintiff and told Plaintiff she would return the laser pointer at the end of the week. (SAC, ¶¶ 7-9, 12.)

Plaintiff alleges that Defendants should have known through reasonable care that a 5mW green laser can cause retinal damage, especially because the retina is more sensitive to green light, and that it is a federal offense, per 18 U.S.C. section 39A to aim a laser beam at an aircraft or flight path due to its incapacitating nature. (SAC, ¶¶ 10-11.)

Plaintiff alleges Munoz started pointing the laser pointer at various objects in her classroom, including Plaintiff's eye. Plaintiff alleges he saw green light, felt discomfort, and turned his head away. Plaintiff further alleges that when he looked up, he saw the laser pointer on Munoz's desk. Plaintiff alleges that Munoz intentionally shined the laser into Plaintiff's eye and was exercising her authority to manage the conduct of her students. (SAC, ¶¶ 13-15 [Munoz states she was not "play[ing] around with students by flashing a green laser around the room"].)

Plaintiff alleges that Munoz "singled out" Plaintiff and was motivated by her animosity towards and disdain for Plaintiff. (SAC, ¶¶ 16-17.)

Plaintiff alleges that he subsequently experienced blurred vision. Plaintiff further alleges that his version of events is corroborated by several witness statements in a follow-up investigation by the Sheriff's Department. Plaintiff describes these witness statements, which generally indicate that Munoz pointed the light into Plaintiff's eye for between one and sixty seconds and that Plaintiff complained about eye pain. Plaintiff alleges that Oaks Christian's president apologized for the incident and for Munoz's poor judgment. As to Witness 8, Plaintiff alleges that Munoz shined the laser pointer in their eye as well before classes began that same day. Plaintiff also alleges that he suffered permanent damage to his right eye, including laser maculopathy. (SAC, ¶¶ 18-29.)

Lastly, Plaintiff alleges that Robert T. Black, Oaks Christian's President, apologized for Munoz's poor judgment, and stated on May 3, 2024, that "it clearly is wrong and inappropriate for a member of our faculty to be shining a laser device in the vicinity of children...the safety concerns regarding laser devices should be well-known, and our teacher should never have activated this device in the presence of students." And during her deposition testimony on March 24, 2026, Munoz stated that it is "common sense"

not to point a laser in someone's eye "for any reasonable amount of time" since it could cause damage. (SAC, ¶¶ 30-31; Munoz's Depo., at 94:5-8.)

As to the battery cause of action, Plaintiff alleges that Oaks Christian had a legal duty to supervise its employees and a special duty to exercise reasonable care to protect students from reasonably foreseeable harm. Plaintiff also alleges that Munoz was acting in the course and scope of her employment with Oaks Christian, and that Oaks Christian is vicariously liable. (SAC, ¶¶ 74-75, 81, 84.)

As to the assault cause of action, Plaintiff alleges that Oaks Christian had a duty to use reasonable care to prevent Plaintiff's harm, a legal duty to supervise its employees, and a special duty to exercise reasonable care to protect students from reasonably foreseeable harm. Plaintiff also alleges that Munoz was acting in the course and scope of her employment with Oaks Christian, and that Oaks Christian is vicariously liable. (SAC, ¶¶ 99-102, 106, 109.)

#### B. Demurrer: Second & Third Causes of Action for Battery & Assault

Oaks Christian demurs to the SAC's second and third causes of action for battery and assault on the grounds that: (1) as a school, Oaks Christian cannot be directly liable for intentional torts; and (2) the SAC fails to assign vicarious liability to Oaks Christian because the SAC "affirmatively pleads that the teacher's alleged conduct was intentional, malicious, and personally motivated, placing it outside the scope of her employment." (Mot., at p. 9.)

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (So v. Shin (2013) 212 Cal.App.4th 652, 668-69.)

"The essential elements of a cause of action for assault

are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed [he or] she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm." (Id.)

The Court first addresses Plaintiff's argument in opposition that Oaks Christian's demurrer is procedurally barred under Code of Civil Procedure section 430.41, subdivision (b), because Oaks Christian did not previously demur to the causes of action for battery and assault. (Opp., at p. 2.) In reply, Oaks Christian argues that its demurrer is not barred because Plaintiff amended his assault and battery claims, specifically adding new allegations in paragraphs 86, lines 14-15, 88, 111, lines 27-28, and 112. (Reply at p. 3.) The Court finds that Oaks Christian's demurrer is procedurally barred. Code of Civil Procedure section 430.41, subdivision (b) states:

"A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer."

The statute does not bar a defendant from demurring to a cause of action in an amended complaint after a demurrer is sustained as to other causes of action only if the demurrer is brought on grounds that could not have been raised previously. Here, Plaintiff added additional allegations in the second and third causes of action, including portions of Munoz's deposition testimony and allegations of Munoz's malicious actions. Oaks Christian specifically points to the following additions in arguing that its demurrer is not barred:

"Defendant

AMANDA YVETTE Munoz's testified, on March 24, 2026, that she knew, at the time of the incident, pointing a laser at a person's eye for any period of time would cause damage to the eye."

(SAC, ¶¶ 86:14-15, 111:27-28.)

"When

asked at deposition whether it was her understanding at the time of the incident that it was okay to shine a laser in another person's eye, Defendant AMANDA YVETTE MUNOZ testified, "I believe it to be common sense to not hold a laser in your eye for a reasonable amount of time, that it could cause damage. I feel like that is common sense." When asked whether it was her testimony that, at the time of the incident, it was common sense to her that she should not point a laser in someone's eye for any period of time, she testified: "That's correct." When asked whether she knew that at the time of the incident, she answered: "Sure. Yes." Defendant AMANDA YVETTE MUNOZ's testimony establishes that she acted with actual, contemporaneous knowledge that her conduct would cause harm."

(SAC, ¶¶ 88, 112.)

The Court finds that these additions to the SAC do not fundamentally alter the claims as to Oaks Christian. Oaks Christian could have previously demurred to the second and third causes of action in both the original complaint and the FAC on similar legal grounds that it is not directly liable for intentional torts as a school and that it is not vicariously liable because Munoz did not act within the scope of her employment and Oaks Christian did not ratify her behavior. Oaks Christian's argument that Plaintiff failed to allege viable causes of action for battery and assault in his SAC references factual allegations from the SAC that were present within the previous complaint iterations. (Mot., at pp. 9-12 ["Plaintiff alleges throughout the SAC that Munoz 'intentionally' shined the laser 'directly' into Plaintiff's eye, that she was 'not playing around with the students' by flashing a green laser around the room, that she deliberately singled out plaintiff, and that her conduct was motivated by animosity towards, or disdain for plaintiff... As pled, Oaks performed an investigation and learned from witnesses 1-8 (in Paragraphs 21-28 of the Second Amended Complaint), as well as others not identified by plaintiff that the laser was pointed at the ceiling, around the room, maybe at plaintiff's eye, maybe at someone's head, at the walls, and that she looked confused as she pointed it. The Second Amended Complaint also notes the investigation performed by the Sheriff's Department (which did not result in any charges being made against Munoz), and the email written by Head of School, Robert T. Black."].)

Oaks Christian concedes that "the operative facts of the SAC are substantially similar to those of the underlying Complaint and FAC." (Mot., at p. 5.) The Court notes that when comparing the factual allegations



pled in the FAC against those pled in the SAC, paragraphs 7-30 are identical in both complaints, with the only new facts in paragraphs 31 and 32 that pertain to Munoz's deposition testimony regarding if she knew pointing a laser in someone's eye could cause damage.

Accordingly, the Court finds Oaks Christian's demurrer to be procedurally barred pursuant to Code of Civil Procedure section 430.41, subdivision (b), and OVERRULES the demurrer as to the second and third causes of action for battery and assault.

### C. Motion to Strike

Oaks Christian moves to strike portions of the SAC related to punitive damages.

The trial court shall strike an allegation of punitive damages on motion unless the plaintiff has plead ultimate supporting facts. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civ. Code, § 3294 (a).) The basis for punitive damages must be pled with specificity; conclusory allegations devoid of any factual assertions are insufficient. (Smith v. Superior Court (1992) 10 Cal. App. 4th 1033, 1042.) A motion to strike may lie where the facts alleged, if proven, would not support a finding that the defendant acted with malice, fraud or oppression. (Turman v. Turning Point of Central California (2010) 191 Cal. App. 4th 53, 63.)

Plaintiff's allegations are insufficient to support a claim for punitive damages. Plaintiff generally alleges Munoz intentionally shined a laser pointer in Plaintiff's eye. While Plaintiff alleges the laser was highly dangerous and Munoz should have known it to be so, Plaintiff does not allege Munoz intended to harm Plaintiff. As noted above, Plaintiff has added a cherry-picked portion of Munoz's deposition testimony, during which she stated that "it is common sense not to hold a laser in your eye for any reasonable amount of time, as it could cause damage. I feel like that is common sense," to support his allegation that Munoz knew that the laser could cause injury. (SAC, at p. 6, n. 2.; Munoz's Depo. Tr., Mar. 24, 2026, at 94:5-8.) However,

the Court cannot ascertain the context of Munoz's statement and more importantly, the statement does not propel Munoz's conduct to malicious levels or rise to the level of "despicable" conduct. (See *College Hospital Inc. v. Crowell* (1994) 8 Cal.4th 704, 882 [confirms that "absent an intent to injure the plaintiff, malice requires more than a willful and conscious disregard" — the added component of "despicable" conduct (base, vile, or contemptible) must also be shown.].) Plaintiff's conclusory allegations are insufficient to support a basis for punitive damages.

As noted in the Court's prior order on the demurrer to the FAC, Plaintiff also previously alleged in the original complaint that Munoz subsequently spoke with Plaintiff and offered to take him to the nurse's office. None of Plaintiff's allegations show Munoz acted maliciously or with an intent to harm Plaintiff.

Regarding Plaintiff's claim for negligence, the Court finds Plaintiff's argument persuasive that the citation to Penal Code section 273a in paragraphs 42-48 is not contrary to this Court's prior ruling because the statute is alleged as a standard of care under a negligence per se theory rather than a standalone claim. (Opp., at pp. 8-9.) Under Penal Code section 273a, "when the conduct at issue involves the direct infliction of unjustifiable physical pain or mental suffering on a child, criminal negligence is not an element of the offense. Rather, the defendant must have a mens rea of general criminal intent to commit the proscribed act." (*People v. Sargent* (1999) 19 Cal. 4th 1206, 1224.) Here, it is undisputed that Munoz voluntarily shined the laser beam throughout the classroom. The Court finds Plaintiff's invocation of Penal Code section 273a as a standard of care to be permissible at the demurrer stage.

Accordingly, the motion to strike is granted in part as to Plaintiff's punitive damages claims but denied in part as to Plaintiff's negligence per se section (paragraphs 42-48).

As to whether to extend to Plaintiff further opportunity for amendment, the Court has already allowed Plaintiff an opportunity to supplement his allegations to support a punitive claim. While Plaintiff includes new, specific statements by Munoz regarding knowledge of possible harm from shining a laser beam into one's eye for a reasonable amount of time, Plaintiff failed to identify any additional facts that support a punitive claim. When drafting the FAC & SAC, Plaintiff removed allegations that the

Court had identified in the original complaint that were unhelpful to Plaintiff's position. Plainly, further amendment would be futile.

Accordingly, the Court grants Oaks Christian's motion to strike as to Plaintiff's punitive damages claims without leave to amend but denies the motion to strike as to the negligence per se sections (paragraphs 42-48).

IV.

#### CONCLUSION

The Court OVERRULES Defendant Oaks Christian's demurrer as to the second and third causes of action for battery and assault in the Second Amended Complaint.

The Court GRANTS, without leave to amend, Defendant Oaks Christian's motion to strike allegations in the Second Amended Complaint related to punitive damages. The Court DENIES Defendant Oaks Christian's motion to strike allegations in the Second Amended Complaint related to the negligence per se theory (paragraphs 42-48).

Moving party to give notice.